MINUTES

European Parliament Delegation for relations with Japan (DJP) — Ordinary meeting

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Main item Exchange of views on the 2024 family law reform in Japan and its implications for international cases and EU citizens

English edition — English speech as spoken; Polish and Japanese speech translated literally

Source European Parliament Multimedia Centre public recording (Original Audio track)
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1. Meeting overview

Item	Detail
Meeting	European Parliament Delegation for relations with Japan (DJP), ordinary meeting
Date and time	Wednesday 17 September 2026, 09:36:13–10:51:46 (CEST)
Venue	Strasbourg (European Parliament); some participants joined online
Agenda	1 Adoption of the draft agenda / 2 Adoption of the minutes of the meeting of 25 June 2026 / 3 Chair's announcements / 4 **Exchange of views on the 2024 family law reform in Japan and its implications for international cases and EU citizens** / 5 Debriefing of the 43rd EU-Japan Interparliamentary Meeting (8–9 July 2026, Strasbourg) / 6 Any other business, next meetings
Interpretation	English, French, German and Polish (the delegation's linguistic profile); Spanish and Japanese exceptionally granted for this meeting
Source	European Parliament Multimedia Centre public recording. This record was made from the **Original Audio (floor) track**

Points where expression may differ between languages (differences between the English interpretation and the speakers' own words) are collected in Appendix C at the end.

2. Opening and procedural items (0:00:05–0:02:22)

Chair Adam Bielan (ECR, Poland) (English)

0:00:13 Dear colleagues and guests, welcome to the meeting of the European Parliament Delegation for Relations with Japan. This is our first meeting and after the summer break and after the 43rd EU-Japan Interparlamentary Meeting on the 8th and 9th of July this year. We have two important topics on the agenda, but before diving in, I need to make some procedural announcements. Interpretation is available from and from the EU. English, French, German and Polish in accordance with these delegations linguistics profile. Additionally Spanish and Japanese interpretation was requested and exceptionally granted for this meeting. The meeting is open. and it is web streamed

0:01:05 Now let's start with the agenda of this meeting. The first point of agenda is adoption of the draft agenda. If there are no comments, the draft agenda is adopted. The second point, adoption of the minutes of the meeting of the 25th June of June 2026. The draft minutes of this meeting, which was held in camera, were included in the meeting dossier. The Secretariat has not received any comments on these minutes.

0:01:34 [misdetected as Polish on the original track ("Jeśli nie są żądne komandki…"); text taken from the English-channel version] If there are no further comments, the draft minutes are adopted.

0:01:39 Point number three, chair's announcement. I have several short announcements to make. As some of you have already heard, Japan's ambassador to the EU, our close friend and frequent guest at these meetings, Mr. Kazatushi Aikawa, will be leaving Brussels soon. His successor, Mr. Tamaki Tsukada, has already been appointed by the Japanese government and is expected to arrive in mid-October. Also, the EU ambassador to Japan has changed. Mr Jean-Eric Paquet has been replaced in Tokyo by the ambassador designate, Mr Giorgio Aliberti. We'll organize exchanges with both ambassadors at our forthcoming delegations meeting.

3. Item 4: Japan's 2024 family law reform — Chair's introduction (0:02:24–0:04:50)

Chair Bielan (English)

0:02:24 Now I would like to pass straight to the very important item on our agenda, item number four, exchange of views on the 2024 family law reform in Japan and its implications for the international cases and EU citizens. Colleagues, during the previous legislature, the European Parliament and in particular our Committee on Petitions was contacted by a number of European parents affected by parental child abduction. of custody and access disputes in Japan asking to intervene by diplomatic means on their behalf. This important and delicate issue has indeed been a topic of sensitive discussions in European Parliament's delegation for relations with Japan and in our earlier exchanges with the Japanese authorities, as well as of the European Parliament resolution of 8 July 2020.

0:03:24 PL Nasza delegacja tez ̇wziąła przymocę, w tym spotkaniu. [about 7 seconds detected as Polish on both tracks; words unclear; from the surrounding English roughly "our delegation also … in this meeting"]

0:03:32 We are therefore pleased to be informed that following the 2024 family law reform in Japan, an amendment to the civil court entered into force on the 1st of April 2026. We are hopeful that this amendment could signify an important change in ensuring children's and parents' rights in line with international legal instruments. And we have here today a number of experts in physical presence or online to explain and discuss these changes.

0:04:08 [misdetected as Polish on the original track; text taken from the English-channel version] First of all, I would like to welcome the EP Vice President Eva Kopacz. who is also the European Parliament coordinator on children's rights. Since 2018, Ms. Kopacz and former EP Children's Rights Coordinators have engaged with parents affected by parental child abduction, loss of custody or access to their children in Japan. Ms. Kopash, the floor is yours. We are looking forward to your introductory remarks on the topic and to hear more on your work on this issue. After, I will give the floor to our experts representing the government of Japan. Please.

4. Introductory remarks by Vice-President Kopacz (0:04:54–0:10:37)

Vice-President Ewa Kopacz (EP Vice-President, Coordinator on Children's Rights)

(opening in English; main speech in **Polish** — translated below)

0:04:56 EN Welcome everybody. My speech will be in Polish. Please put your headphones.

0:05:07 PL→EN Dear Mr Chairman, distinguished guests and experts, first of all I thank you, Mr Chairman, for acceding to the request to take up the subject of the changes in family law in Japan and their impact on the situation of citizens of the European Union and their families, and in particular — what especially concerns me and the function I perform — in particular children.

0:05:35 JA→EN When in 2020, for the first time, we raised these very important but at the same time very difficult matters in the forum of the Delegation for relations with Japan, the European Parliament adopted a resolution in which it clearly set out its position.

0:05:54 JA→EN The picture that emerged at that time from the petitions submitted and the cases brought to my office was very disturbing. We were dealing with two types of cases which very painfully affected Union citizens and their children. The first had a cross-border dimension and concerned the effective implementation of the provisions of the 1980 Hague Convention on parental child abduction and the enforcement of return decisions. In a situation where one of the parents had unlawfully abducted or retained children in Japan, the left-behind parent very often had no support whatsoever during the Hague procedure. And even when a Japanese court decided on the child's return, that decision··· was not enforced. In practice this meant the complete isolation of the children from the left-behind parent.

0:06:53 JA→EN The second type of case had a domestic dimension and concerned mixed couples living in Japan. After the breakdown of the relationship, the parent who was not Japanese usually lost contact with their children, after the Japanese parent took the children from the shared home, which often took place in the absence of the former. This was directly linked to the system of granting sole custody of the child to only one of the parents, mainly the one who had the children with them. The sole-custody system deprived the other parent of rights and, consequently, in practice, of any contact with the child, and also of any knowledge about the child.

0:07:56 JA→EN As the European Parliament we demanded above all the introduction, first, of an effective procedure for enforcing court decisions on the return of a child within the Hague procedure; second, changes to the provisions enabling real, close contact of the child with both parents after their separation; and third, the introduction into Japanese family law of the possibility of joint custody of the child. Today's meeting aims to present the changes in Japanese law which have recently taken place precisely in this context, and to look at their effectiveness. I must admit that parents who have lost contact with their children, and who have for years been fighting in Japan for the right to be part of their lives, are very sceptical.

0:08:56 JA→EN That is why today I would like to hear how the changes being introduced are to prevent the situations described in Parliament's 2020 resolution. What the exercise of joint custody of a child after the parents' separation will look like in practice, and what really lies behind the slogan "joint custody". How the new rules will be applied by the courts in a situation of conflict, when one parent is opposed to joint custody and the other applies for such a solution. And finally, how the new provisions will be able to apply to custody cases already decided — so what this procedure will look like in practice, and whether effective mechanisms are provided for enforcing decisions on contact and joint custody.

0:09:55 JA→EN As you can see, there are many questions, but doubts are also multiplying. That is why I will listen with interest to the presentations of today's guests and experts. I very much hope that the provisions under discussion will contribute to the effective realisation of one of the fundamental rights of the child, namely the right to close contact and a relationship with both parents after their separation. Of course, in a situation where this does not threaten the child's safety. Thank you very much. I will listen with great attention to the speeches of our invited guests and experts. Thank you, Mr Chairman.

5. Presentations by the representatives of the Government of Japan

Chair Bielan (English)

0:10:39 Thank you, Mr. Kovac, for your remarks. I will now give the floor to the representatives of the Japanese government. We have with us two experts: Mr. Yasuyuki Ebata, Director, HAC Convention Division, Consular Affairs Bureau, Minister of Foreign Affairs. and Mr Masuyoshi Furuya, Councillor, Civil Affairs Bureau, in Ministry of Justice on behalf of the Government of Japan. Mr Furuya is remotely from Tokyo. Welcome to this meeting and thank you for agreeing to share your expertise. You both have 10 to 15 minutes for your presentations on behalf of the Japanese government. The floor is yours, please.

5.1 Presentation by Mr Ebata (Director, Hague Convention Division, Consular Affairs Bureau, MOFA) (0:11:32–0:23:49) — English

0:11:32 Thank you very much. Thank you, Mr. Chairman and distinguished guests and also especially Madam Vice President and members of the DJP. Good morning. Thank you very much for giving me this opportunity today. My name is Evata, Director of the Heng Convention Division at the Ministry of Foreign Affairs of Japan. I have come here all the way from Tokyo because I would like to discuss with you the European Parliament resolution adopted in 2020. These days, business trips to Europe are quite expensive, particularly for Japanese people, due to weak yen.

0:12:24 [misdetected as Korean on the original track; text from re-decoding with English forced] Nevertheless, it is a great pleasure to be here.

0:12:42 Sorry. Oh yes

0:12:46 And this resolution calls on Japan to ensure the return of children under the HEN convention, facilitate parent-child access, and introduce joint custody. Six years have now passed since its adoption. Today, I would like to explain how Japan has changed the situation since 2020.

0:13:20 But first, there is one issue I would like to bring to your attention. Resolution could, in certain circumstances, have unintended consequences. For example,

0:13:44 The resolution could, in certain circumstances, have unintended consequences. For example, when a divorced Japanese parent residing in Europe wishes to make a temporary trip to Japan with their children during the summer holidays or Christmas holidays, the other parents may object and seek to prevent their child from leaving the country. In such cases, the mother may be brought before court. However, the 2020 resolution has been presented to courts as evidence against Japanese parents. As a result, courts may issue orders preventing the child from leaving the country.

0:14:31 Consequently, some Japanese nationals residing in Europe are unable to return temporarily to Japan with their children. Some children are also unable to visit their grandparents in Japan. Japan-EU relations have deepened considerably in recent years, extending far beyond the economy to areas such as security and many others. At the heart of the relationship are people-to-people exchanges. I therefore believe we need to find a way to address the concerns surrounding this resolution.

0:15:19 Japan ratified the 1980 Heng Convention in 2014. And the Implementation Act of the Convention was enacted also in 2014. In 2020, Japan amended this legislation, bringing about a significant change in the enforcement of court orders for the return of children.

0:15:54 This table shows Japan's track record in return cases. Of the 141 cases that have reached the conclusion, 82 resulted in return and 59 in non-return. Of the 82 cases in which return was decided, 76 resulted in the child's actual return. In other words, 93% of return decisions were implemented. and the children were returned to their state of habitual residence, including yours.

0:16:37 2020 amendment of implementation act significantly changed the enforcement procedures. Various conditions and restrictions were removed, making it substantially easier to enforce orders for the return of children.

0:17:04 Here is the result. The success rate in enforcement was 44% before 2020. Following the 2020 amendment, it improved dramatically, reaching 75%.

0:17:33 Indirect comparatory execution is used to facilitate the implementation of parent-child access arrangements. This means that when a court has ordered access but the child is not made available for visitation, the parent who fails to comply may be required to pay a specified amount of money for each day that the visitation does not take place.

0:18:08 This slide shows the proportion of Hague Convention cases that resulted in arrangements for parent-child access. According to statistics by the HCCH, the average among contracting states is 27%, whereas the figure for Japan is 40%. For comparison, it is 8% for Germany, 26% for France, and 36% for the United Kingdom.

0:18:48 Japan also provides comprehensive support for parent-child access. As this comparison shows, Japan's support programs are more comprehensive than those of many other countries.

0:19:08 This chart shows that the percentage of cases in which the courts denied access was only 3 to 5%. In more than 95% of cases, the courts issued decisions allowing parent-child access.

0:19:32 The amended civil court came into effect in April of this year, introducing a joint custody after divorce. and also establishing obligation of mutual respect for individuality and cooperation between parents. I believe that the Japanese society will change as a result of this reform. The Ministry of Justice will provide further details later.

0:20:07 any event individual cases need to be resolved through a bilateral framework

0:20:18 In fact, until recently, Germany had also issued travel advisory like this concerning Japan's implementation of the HEN convention. It mentions that even legally binding return decisions of Japanese courts are not enforced against the will of the abducting parent. In February of this year, I held discussions with the German Foreign Office to remove the references to the Hain Convention contained in its travel advisory for Japan. and they agreed. As a result, the German travel advisory now reads quite differently. In essence, it says Japan had some difficulties in the past with regard to the enforcement of court decisions. Since 2020, statutorily provisions have been enforced aimed at facilitating enforcement.

0:21:32 And following Germany, now it is your turn to revise its resolution in 2020. The concerns regarding Japan rise in the resolution have been addressed through significant changes in Japan. Children and wonderfully removed to Japan are being returned to their countries. Parent-child access is being properly facilitated. Joint custody has also been introduced in Japan this year. In addition, the Children and Families Agency was established in 2023.

0:22:17 And in short, Japan's legal framework, institutions, and practices have evolved significantly since the adoption of the 2020 resolution. Ladies and gentlemen, Japan has completed all the actions and the measures identified in the resolution. Now it is time to remedy the situation in order to enhance the... our relationship, including people-to-people exchanges. I believe Japan deserved it. If you nevertheless encounter any further problems, please do not hesitate to contact us. We are here to help you. At the same time, I would like to ask for your understanding and cooperation in addressing the 2020 European Parliament resolution.

0:23:14 There are still Japanese nationals residing in Europe who are unable to return temporarily to Japan with their children. Again, in order to further strengthen our invariable relationship, I believe we should work together to find practical solutions. I hope that today's discussion will deepen our mutual understanding. and help us move forward together. Thank you very much.

Chair Bielan

0:23:51 Mr. Bata, now I will give the floor to Mr. Furia, please.

5.2 Presentation by Mr Furuya (Councillor, Civil Affairs Bureau, Ministry of Justice; remotely from Tokyo) (0:24:12–0:29:57) — English

0:24:12 May I start my presentation? Yes, we can hear you.

0:24:17 Good morning and good afternoon Tokyo. My name is Masayoshi Furuya, Councillor of the Ministry of Justice. Anonymous members of the European Parliament, distinguished guests, ladies and gentlemen, it is a great honor to speak before you today. Thank you for this very opportunity. It is a special pleasure to speak here in Strasbourg, even through webinars, where different languages and legal traditions meet. Today, I'd like to add a Japanese voice, and I promise to keep it very brief.

0:24:56 You may already know, as a distinguished member of Parliament, Ms. Eva Kovacs said, Japan now allows joint parental responsibility after divorce. In addition to this change, in response to your particular interest in parent-child contact, I'd like to highlight another key part of the reform, the legal duty to respect the other parents. Next slide, please.

0:25:31 Can you change... Okay, thank you very much. Summary of the amendment. The Civil Code Amendment Act was enacted in May 2024 and came into force on 1st April 2026 this year. The law protects the best interest of child, but it goes further. It clearly states, stipulates, that the president must respect each other. This duty continues after divorce, even when one parent has parent responsibilities. I can emphasize a message, divorce may end a marriage, but it doesn't end the duty to respect the other parents. Next slide, please.

0:26:35 What has changed under our family law reform? Why is this so important? As you can see in the underlined text at the bottom of the slide, this is one of the core part of our reform. The reform introduces the option of joint parental responsibilities after divorce. It also clearly states that parents must respect each other's individuality and work together in matters concerning their children. I heard some foreign parents in Japan have been unable to see their children, some even in foreign countries. There has been concerns that the parents might move a child to gain an advantage in the court case. If other parents doesn't know where the child is, contact may become difficult or even impossible. Our amendment law gives courts a clearer basis for considering such conduct.

0:27:46 Let me give one clear example. A parent move a child without a good reason. The parent doesn't tell the other parent in advance and refuses to say where the child is. As a result, contact becomes very difficult or even impossible. The court may now consider this conduct in two ways. First, it may be against the best interest of the child. Second, it may breach the duty to respect and work with the other parents. The second point is especially important on this situation. The seriousness of the breach may count against that parent when the court decides parental responsibility or whether an area decision should be changed. I can recall moving a child without a good reason, hiding a child's location, and blocking contact may have legal consequences. Its query is stipulated on what revised civil law. Next slide, please.

0:28:57 So, finally, the Minister of Justice is making a strong effort to explain the reform. We are producing multilingual brushes, including in French and English, explainer videos and detailed questions and answers, all on our website. We are actively sharing accurate, up-to-date information. This matters because some views of Japan's familial law may still be based on the former system. I respectfully invite you to refer to our official materials when considering Japan's legal current system. Please remember three points. The reform is not only about joint parent responsibilities. Respect for the other parent is now clearly stipulated in our legal and civil law. A breach of that duty may affect the court decision. Thank you very much for your kind attention.

6. Presentation by Professor Nagata (Osaka University) (0:30:04–0:38:40) — English

Chair Bielan

0:30:04 Thank you very much for these informative presentations. They have been distributed in the meeting room and will be circulated by email. Now I would like to pass the floor to our independent academic expert who is also joining us online from Tokyo. Ms. Mari Nagata, who is professor of law at Osaka University and is also a trained mediator of Mediation Center for Family Conflicts and Child Abduction and its ambassador for Japan. Professor Nagata, you have the floor for five to seven minutes. We look forward to hearing your views and as an independent academic expert and... practitioner on how these legislative changes could help solve the issues, especially for the European parents who have been facing issues described before. The floor is yours.

Professor Nagata

0:31:03 Thank you very much, Mr. Chair and honorable members. Thank you very much for the kind introduction and for the opportunity to address you today. And please allow me to apologize for joining you only online rather than in person. We have just heard about the new legal framework. I'd like to add a researcher's perspective focusing on how the reform may operate in practice. particularly in relation to parent-child contact and dispute resolution. Before I begin, one brief terminological note. The expression joint custody, joint parental responsibility, and joint parental authority used in today's presentations all refer to the same Japanese legal term, kyodo shinken, and I will use joint parental authority.

0:32:08 Thank you. And let me begin with a feature of the Japanese divorce system that is easily missed in a European discussion. In Japan, divorce normally does not mean judicial divorce. According to official statistics, around 90% of divorces are concluded simply by filing an agreed registration form with the municipality. A court does not approve that divorce or scrutinize a parenting plan. Next slide, please.

0:33:14 Yes, thank you very much. And against that background, what are parents choosing under the new system? This slide shows an only local snapshot. Nationwide official data have since become available. In April 2026, 24.7% of minor children whose parents divorced were under joint parental authority. Because the national figure counts children rather than divorces, it is not directly comparable with the 18% shown here in this slide, but both indicate that the new option is already being used. So next slide, please.

0:33:58 Now to the central question. Does joint parental authority actually ensure parent-child contact? Since 2012, Japanese law has required divorcing parents to address parent-child contact in the child's best interest. But parental authority and contact remain legally distinct. Joint authority concerns parental decision-making. It does not by itself secure any particular amount or quality of contact. court-related divorce cases involving minor children, about 55% include a contact arrangement. where the frequency is specified once a month is the most common pattern in a european context that is strikingly limited The larger blind spot is what happens outside court. Japan has no reliable nationwide official data on whether contact arrangements are made and followed in the great majority of divorces concluded by agreement. Next, please.

0:35:17 A non-governmental survey, although not limited to divorce by agreement, offers a cautionary indication of a broader implementation problem. The survey was submitted to the Ministry of Justice Family Law Subcommittee in 2022. Among respondents who had a contact arrangement, nearly half reported that it was not being fully followed as agreed. This figure requires The survey included only mothers' perspectives and was based on a non-random sample collected through single mother support organizations. Nevertheless, it identifies a serious implementation risk. Even where parents reach an agreement, continuing contact may remain fragile. A change in the legal category of parental authority cannot transform this established practice overnight. Next, please.

0:36:25 This is where specialized dispute resolution becomes important. Next one, please. Next slide, please. Yes, thank you. In Japan, two relevant forms, family court mediation and specialized private aid year. The former can produce a detailed and enforceable agreement, while the latter may offer earlier and more flexible support. neither is appropriate in every case careful screening for domestic violence and coercive control is essential and judicial protection must remain available Where it is safe and appropriate, BOP can help parents develop a detailed workable parenting plan. Private ADR may also help them adapt it as the child's need and the family circumstances change. Next slide, please. For internationally connected families, continuing contact may be the central issue after separation or divorce beyond the... The question of a charge return under the Hague Convention. The practical difficulties shown on this slide make cross-border arrangements especially demanding.

0:37:47 That is why specialized ADR may have an even greater role to play in international cases, helping parents develop and adapt a workable plan across two countries. Next slide, please.

0:38:02 So will joint parental authority change parent-child contact? It creates an important legal possibility but not a guarantee. Its impact will depend largely on arrangements made outside court where most Japanese divorce occur. Japan therefore needs appropriate ADR, timely court protection, and better post-reform data. Next slide, please. Next slide, please.

0:38:32 So, Mr. Chirio, honorable members, thank you very much for your attention. I would like to be glad to take your questions. Thank you. Thank you.

7. Statement by the European Commission (0:38:44–0:45:38) — English

Chair Bielan

0:38:44 Thank you very much for your views, Professor Nagata. Lastly, I would like to welcome our experts from the European Commission, Ms. Angela Sears de Bono, Legal and Policy Officer at the Director General for Justice and Consumers, and Ms. Patricia De Luca, Team Leader for External Relations in the Civil Justice Policy Unit in the Directorate General for Justice and Consumers. Both are online from Brussels. Colleagues, the floor is yours. You have also 5-7 minutes for your comments. Please.

European Commission — Ms Patricia De Luca

(speaking on behalf of both Commission officials)

0:39:19 Thank you, Chair for the floor. I'm Patricia De Luca. The Commission would... to thank the European Parliament for having organized this important hearing and all participants for their interesting presentation. The issue of parental child abduction and visiting rights is of the utmost importance for the European Union. It is an essential part of the EU policy to promote the rights of the child, both within the EU and in its external action. In this context, the European Parliament [English-channel version: "the European Commission has followed"] development in Japan since the ratification of the 1988 Convention in 2014. However, notwithstanding the satisfactory implementation law adopted already in 2014, in practice, the return of the abducted child to a new member state was in several cases hindered. by the lack of enforcement of judicial decision of EU courts. And the wide use of allegations of domestic violence by Japanese courts in order to refuse the return of the child to their place of habitual residence was also a matter of concern for us. Moreover, without the agreement of the Japanese parent, also the visiting rights of the foreign parents were not enforced.

0:40:55 Several European citizens reported to the Commission about the lack of cooperation of Japanese authorities in this context, which cut off them permanently from the life of their children. We stress that the children have the right to maintain personal relations and direct contacts with the left behind parents on a regular basis, in line with the principle of the UN. to which Japan is a party. And we recall also that under its Article 21, the 1980 Convention has a specific provision in order to facilitate and ensure the protection of the right of access. And it is also a duty of the central authorities to take steps to remove as far as possible obstacles to the exercise of...

0:41:59 The reform entered into application in April 2020 of the civil execution law and the law implemented in the Antinetic Convention, well, it is certainly a positive step, but there are still mixed opinions on the actual rate of successful enforcement of foreign decisions after this reform. But for us, it is commendable that Japan... and try to solve it. We also welcome the introduction of a mediation scheme for international child adoption and access case, and would be interested in knowing whether the agreement issued from mediation can be enforced if not respected by one of the parties. And we hope to continue to engage with Japan on this matter. Finally, on the recent reform of the civil code,

0:43:01 Well, the law effectively only came into application on the 1st of April this year, so it is not long enough to assess how this law will work in practice. But we hope that this shows a remarkable change of attitude and the increasing awareness that even if the parents are divorced, they have both the right to... we stress again that also the participation of both parents to the day-to-day life of their children is important. So maybe we will have some questions really on the practical application of this, you know, what happens if one of the parents does not comply with the agreement that they have reached on the joint parental... responsibility and how the courts are involved. And important for us how this new law is expected to have an impact on the older pending case where the foreign parent was deprived of any contact with their children. And finally, about the statistics that have been showed, we would like to understand if include also voluntary returns or they are the true reflection of cases where a successful enforcement of a return order under the 1980 convention happened against the will of the taking parent. Thanks a lot for your attention.

Chair Bielan

0:45:03 PL→EN [detected as Polish; the Chair's English: "Thank you very much. Now Ms Patricia De Luca."] Sorry, sorry, Miss Sirius de Bono. — Sorry, I spoke for both. — Thank you very much. So thank you for your insights. I would like to open the floor to members for the questions and comments. We'll first collect all questions and then give the floor for our speakers for their answers and final remarks. Only if time permits, we'll be able to have a second round in this debate. Colleagues, the floor is yours.

8. Questions from Members (0:45:42–0:54:57)

Chair Bielan

0:45:42 DE Herr Petroff, bitte. [German: "Mr Petrov, please."]

Mr Hristo Petrov MEP (Renew, Bulgaria) (English)

0:45:46 Thank you, Chair. Let me first thank all participants in this important discussion on children's rights. I am aware of the importance attached to children in Japanese society and it's essential that the implementation of this reform always respects the best interests of the child. I would like to focus on the practical implications of this reform, which has recently come into force for transitional families and in particular for European Union citizens.

0:46:18 [misdetected as Slovenian on the original track; text taken from the English-channel version] involved in proceeding relating to the determination of parental responsibility and the change of residence. So my question goes to Professor Nagata.

0:46:33 From your mediation experience, what are the main safeguards needed to make joint parental responsibility workable when parents live in different countries? For example, how should agreements address the child's residence, international travel, schooling and regular contact with the non-resident parent? And I also have a question on another related topic. With regard to children's right to their identity, could you please explain how Japan approaches the issue of access to information concerning the biological origins of an adopted child, particularly where the child has links to another country or a member state of the European Union, in particular in cases of cross-border adoption, what mechanisms are in place? Once the child has reached the appropriate age, they can effectively access information about their biological parents and family history, whilst respecting the privacy and protection of all parties concerned. Thank you.

Chair Bielan

0:47:53 Thank you very much. Vice Chair Łukaciewska, please.

Vice-Chair Elzbieta Katarzyna Łukacijewska (EPP, Poland) (**Polish** — translated below)

0:47:58 PL→EN Thank you very much for the information. This subject is very significant, very important. We would all like children to be happy and to have contact with both parents. However, independent sources indicate that this reform concentrates on legal custody — parental authority — while it does not introduce substantive… [changes to] the right to contact and visits; that is, it strengthens the legal framework of custody but not the tools for enforcing parenting time. And here I have a question to the Japanese side: are further legislative steps planned in this area? And to the European Commission I have a question, because in 2020 we had a resolution which spoke of the need for a special contact point, for example in the Justice portal, providing consular and information support for European Union citizens in Japan. My question is whether such a contact point has been updated, whether it is functioning, or whether this matter… this subject has not been realised. Thank you very much.

Chair Bielan

0:49:40 Thank you very much, Miss Lauretti.

Ms Camilla Laureti MEP (S&D, Italy) (English)

0:49:45 Thank you, Chair. I have not really, I'm not really ever a question, but a proposal. Thank you really to you, because I think that this meeting is really important. And thank you also to our guests for taking part in this public exchange. It's really important, and especially in this meeting. I've recently become aware of the differences between certain principles of family law in Japan and the EU member state. I've also had the opportunity to learn about the situation of an European citizen affected by these differences, including an Italian father, Michele Dallarno. Maybe you heard about him. who has been denied the opportunity to maintain contact with his own children. In this regard, while once again expressing my appreciation for the importance of today's meeting, I believe that it is also the role of this delegation to hear directly from citizens who are concerned and affected by this issue about whether and the... how the positive step presented to us today by our Japanese partners will contribute to resolving the many cases that remain outstanding, always with the best interest of the children at the forefront. I'm confident that they will become the opportunity to participate in one of our forecoming delegation meetings. And I invite you, kindly invite you. future occasion. Thank you very much.

Chair Bielan

0:51:49 Thank you, Ms. Vysnicka.

Ms Jadwiga Wiśniewska MEP (ECR, Poland) (English)

0:51:54 Thank you very much, Mr. Chair, for giving me the floor. Following today's discussion, I believe that the key question is not how Japan has changed this legislation, but whether the reform will deliver tangible results in practice. For years, we have been receiving reports from European parents who, as a result of cross-border in disputes have lost contact with their children in Japan. The possibility of establishing joint parental authority after a divorce is therefore an important and positive change. However, changing the law alone will not be enough without its effective implementation and the enforcement of court decisions. I believe that family law should remain primarily a matter for individual states. However, in cross-border cases involving EU citizens, I expect legal certainty, efficient procedures and effective protection of the rights of children and their parents. I would like to ask for some more detail. on the practical options available to parents in existing cases who wish to seek a review of previous arrangements under the new legislation. We are aware of the situation in which an EU national parent has had no mindful contact with their child for several years. [from the English-channel version: What concrete legal avenues are] now available to such parents and what can the European Parliament realistically do to support them in these cases. Thank you very much.

Chair Bielan / Ms Joanna Scheuring-Wielgus MEP (S&D, Poland) (English)

0:54:06 Thank you very much. And last but not least, Ms. Schering-Velgus. — Thank you so much. And thank you so much for the presentation. It was very interesting, especially the presentation of the new law, a family law reform. I followed the implementation of this law. And I am interesting in this main principle, obligation of mutual respect and respect each other. the principle that parents must cooperate with one. My question about this principle is very simple. Aren't you afraid that the new law will force victims to contact their perpetrators? What do you think about it? I am very interested in the answer of these questions. Thank you.

9. Replies (0:55:00–1:04:43)

Chair Bielan

0:55:00 Thank you very much. I don't see any other colleagues who would like to take a floor. I'll give the floor now to all our experts to answer the questions and for their final remarks. I suggest that now we start with the Commission representatives, then pass the floor to Professor Nagata and then to the representatives of the Japanese government.

European Commission — Ms Angela S. de Bono (English)

0:55:22 Thank you. This is Angela Sieres-De Bono. I take the floor to reply on the question on the point on whether we have provided on the e-justice portal the information. I would like to state that the information on relations between European citizens and third states is duly updated on the website of The Hague and the immediate contact points would be... However, in the context of the EU, we have the European Judicial Network in Civil Matters, where we often have discussions between central authorities and also discuss specific cases. When the Commission receives from citizens complaints or requests for information, we duly direct them also to the services or rather to the EU. on the eJustice portal as well as on the Hague website. I hope this is a reply to your question. Thank you.

Chair Bielan

0:56:43 Thank you, Professor Nakata.

Professor Nagata (**Japanese** — translated below from the speaker's own words on the original track)

0:56:54 EN Can you hear me? Yes. And I'd like to respond to your questions if it is permissible in Japanese. Yes.

0:57:08 JA→EN Thank you very much for the various questions. I understood well that your interest is focused in particular on the point of enforcement of parent-child contact. We received several questions on the fulfilment or enforcement of parent-child contact, so first, ADR…

0:57:37 JA→EN …I believe there was a question [on the conditions for enforcing an agreement reached through ADR]. On that point — and this applies regardless of whether the agreement was obtained through mediation — the content of the agreement needs to be specified as far as possible, that is, when, where, how…

0:58:11 JA→EN …it needs to be decided in detail. As for vague agreements, in Japan it is said to be difficult to give them enforceability, on the basis of Supreme Court precedents and the like. However, if the content of the agreement is extremely specific, then in the form of indirect enforcement (kansetsu kyōsei), against a party who does not comply with the agreement…

0:58:41 JA→EN …it is possible to exert a certain compulsory force. Also, regarding tools for the effective fulfilment of parent-child contact: some ADR institutions have built systems to support parent-child contact, so such ADR institutions, and the parent-child contact support systems those ADR institutions provide…

0:59:22 JA→EN …I feel that could be one possibility. Unfortunately, however, Japan is not in a situation where there are very many facilities that can broadly support parent-child contact, so I feel this is a point on which we must work a little more on the Japanese government and the private sector in future. That is all from me for now.

Note Translated from the Japanese original on the floor track. The Japanese ASR output has no punctuation in places; sentence breaks in the translation follow the sense. At 0:57:37 the first half of the sentence ("I believe there was a question [on the conditions for enforcing an agreement reached through ADR]") is cut at the segment boundary. The English interpretation rendered this passage as "if the agreement is specific, then direct enforcement is possible", whereas the speaker said "in the form of indirect enforcement" (see Appendix C).

Chair Bielan

1:00:02 Thank you. Can the representatives of Japanese government... take a flow

Mr Furuya (Ministry of Justice)

(**Japanese** — translated below. Identified as Mr Furuya from the content — Civil Code, DV, family-court procedure — and because the next speaker asks to answer "in Japanese as well")

1:00:20 EN May I speak in Japanese? Yes, please.

1:00:24 JA→EN I will answer three points. The first is the question from the Polish delegation [ASR output: "policy delegation"] at the end: as to whether, in cases where there is DV, the victim is compelled to perform the duty of cooperation towards the perpetrator — under the text of the Civil Code there is no exception, but in practice the court assesses the situation, including whether there is DV.

1:01:08 JA→EN Second, as to what concrete means are available — for example to the EU-side parent — when no agreement has been reached: we too are aware of foreign nationals residing in Japan who, after divorce, are unable to see their children residing in Japan, and of persons abroad who are unable to see them. First, in such cases, filing with the family court for adjudication or mediation on parent-child contact can be considered.

1:01:38 JA→EN As I explained earlier, in that process, for instance changing one's address without informing the foreign parent, or not disclosing the child's whereabouts, is contrary to the duty of cooperation between the spouses, and we consider that it will be judged to the disadvantage of the party who breached such a duty in the subsequent adjudication. Third, on international adoption — the right to know one's origins in cross-border adoption, the matter of biological origins:

1:02:18 JA→EN …I ask for your understanding [that I cannot answer, as it is outside my remit]. One point, however: Japan is, at present, not yet a State Party to the 1993 Hague Convention on intercountry adoption. That is all from me.

Note Translated from the Japanese original on the floor track. ASR errors in the Japanese: "policy delegation" stands for "Polish delegation"; "right to know the sheep" (羊) for "right to know one's origins" (出自); "international industry-type aid convention" for "intercountry adoption convention"; "my other venue is as above" for "that is all from me". Immediately before 1:02:18 the first half of "I ask for your understanding [that I cannot answer, as it is outside my remit]" is cut at the segment boundary. **The English interpretation rendered this as "Japan is still abiding by the 1993 Hague Treaty", whereas the speaker said Japan is "not yet a State Party"** (see Appendix C).

Mr Ebata (Ministry of Foreign Affairs)

(**Japanese** — translated below. Identified as Mr Ebata from the content: Hague Convention and contact support)

1:02:39 EN Mr. Abata would like to take a poll, please. Can I answer in Japanese as well? Thank you. [Chair: "Mr Ebata would like to take the floor"; Mr Ebata: "May I answer in Japanese as well?"]

1:02:49 JA→EN There was a comment about the support system for parent-child contact in Japan. First, as regards the Hague Convention, as I showed on the slide earlier, compared with other major Contracting States of the Hague Convention, Japan provides considerably generous support. Within that, regarding the support system for parent-child contact,

1:03:19 JA→EN …there is [parent-child contact support], and the parties — the LBP, and also including the TP — can use it free of charge. There is no other country providing such a support programme. Japan is the only one doing this. Also, generally speaking,

1:03:48 JA→EN …in Japan there are more than 70 private parent-child contact support organisations nationwide, providing support such as accompanying parent-child contact, handing over the child, and liaison and coordination. In addition, training sessions and symposiums attended by parent-child contact supporters and related persons are held regularly. As to how [things will change] through the legal reform,

1:04:19 JA→EN …we too will watch with high interest, and as I said earlier, it is expected that Japanese society as a whole will gradually change through this legal reform.

Note Translated from the Japanese original on the floor track. "定約国" in the ASR output is "締約国" (Contracting State). LBP = left-behind parent; TP = taking parent. 1:03:19 begins mid-sentence ("there is [parent-child contact support]"); 1:04:19 begins mid-sentence ("as to how [things will change] through the legal reform") — both splits are segment boundaries.

10. Closing remarks by Vice-President Kopacz (1:04:46–1:08:16) — Polish

Chair Bielan

1:04:46 Thank you very much, Madam Kobach.

Vice-President Kopacz

1:04:51 PL→EN Thank you very much, Mr Chairman, once again for organising this meeting. I thank the Japanese side for the first step that has been taken, for the change in civil and parental law. What may cause concern are the statements that only 24% of children remain — in families that have broken down, of course — under the joint custody of the parents. And even more concerning is that only 55% of this group of children are children who have contact with both parents once a month.

1:05:34 JA→EN Thank you very much to Ms Wiśniewska for the particular, very much to-the-point questions. Of course, the law is the law, and we shall know it by its fruits. So we in the Coordinator's office — the Coordinator on children's rights — will probably have the most reliable statistics, because quite simply, if this law works, there will be fewer and fewer of those parents coming to us with their problems, and perhaps with time they will disappear entirely.

1:06:05 JA→EN Each of us adults has a duty of care for the weakest, that is, for children. And whether it is in Japan, or in any other European country, or beyond, we adults have a duty of care not only that the child be healthy, but also that it develops culturally and historically. If it is a mixed marriage, that is, the child comes from a family where the parents are from two separate countries, that it has the opportunity to learn both the history and the culture of the country its parent comes from. Without contact, this is impossible.

1:07:04 JA→EN And so the resolution that was drawn up in 2020 in the European Parliament was not aimed against anyone — quite the opposite. It was directed solely and exclusively at one action: that children should not be left without care for them by the parents who have influence — adult parents — and by the societies which have influence over the legislation in a given country. That is why I thank you very warmly for this first step. I sincerely hope that everything will go in a good direction.

1:07:34 JA→EN Thank you, Professor. I listened to your remarks with interest. I hope that mediation, of which you are a proponent, will play a special role in these family conflicts. I am also in favour of not leaving this subject as already dealt with and ticked off. And here, Mr Chairman, I have a heartfelt request to you, that we… after some interval, perhaps towards the end of the term, try to take stock of how this law has worked and what the effects are in the practice of implementing this law. Thank you very much. Thank you very much.

11. Item 5: Debriefing of the 43rd EU-Japan Interparliamentary Meeting (IPM) (1:08:17–1:14:50) — English

Chair Bielan

1:08:17 Thank you very much, Madam Kobach. Thank you for raising this very important issue and I promise you that we'll organize a follow-up meetings. Thank you all for participating in this discussion and thanks to our guests and experts for the valuable contribution. Now I would like to pass to the next item on our agenda, which is the briefing of the 43rd EU Japan IPM held in Strasbourg on the 8th and 9th of July this year. Dear colleagues, I would like to thank everyone who participated and contributed to the 43rd EU-Japan Interparlamentary Meeting on 8th and 9th of July in Strasbourg. We had two half days on intensive debates, no doubt a successful interparlamentary meeting with a very good participation on our side, especially on the first day. And also thanks to cooperation with EU-Japan Interparlamentary Meeting. The high-level delegation from both chambers of the Japanese Diet consisting of nine MPs was led by the long-standing House of Representatives member Mr. Hajime Funada and included five former cabinet ministers and MPs having 20, 40 plus years of service.

1:09:42 There was a general agreement throughout the two days of meetings of the importance of EU-Japan relations in the context of the current systemic global crisis. At the end of the meeting, we signed a joint declaration by the co-chairs, which, among other things, calls for exploring the ways of how to further deepen our parliamentary relations with the National Diet of Japan, for example, by establishing a joint parliamentary committee. This call reiterates the proposal in the EP recommendation on the changing security situation in East Asia and the need for closer cooperation with like-minded partners. adopted by the Parliament's plenary on 8 July.

1:10:32 Colleagues, please bear in mind that while we are working to strengthen our relations with the Diet, any changes in this regard may require a lengthy process, particularly on the side of our partner parliament, and will ultimately depend on the necessary political will. Regrettably, currently our possibilities to engage with the national Diet on a formal basis are limited to one inter-parlamentary meeting per year. as the current framework of cooperation unchanged since 1979 does not allow us flexibility to meet more often than once per year, not even online. This substantially differs from relations we have with many other close partners. At present, we are working to agree on a date for the 44th EU-Japan interparlamentary meeting, which will be hosted by the National Diet in 2020.

1:11:33 Unfortunately, I am not yet in a position to communicate any specific date, as the national diet appears to have a particular busy schedule during the weeks allocated to external parliamentary activities, namely the periods during which European Parliament delegations are authorized to travel abroad. We are working on this together with the secretariat of both parliaments. Currently, the most likely date would be November 2027, but we are doing our best to advance this date to avoid such a lengthy gap between the two IPMs. Waiting until November would indeed mean 15 month long gap between the two IPMs. You will be informed as soon as we reach the agreement.

1:12:23 Dear colleagues, it is now your turn to share the impressions and comments regarding the past IPM and also our future parliamentary relations with the Diet. Madame VysM̌jevska would like to take the floor, please. No? Not in this point? In the previous one, okay. Does anyone want to take the floor? Yes, Mr. Petrov, please.

Mr Petrov (English)

1:12:52 Thank you, Chair. I would like just to thank you and the Secretariat for organizing this [from the English-channel version: inter-parliamentary meeting. I believe the discussions were of great quality and we were fortunate to welcome so many] high-ranking Japanese members of both chambers of their parliament. On a personal note, I would like to emphasize that it was particularly timely to hold a session on cooperation between the EU and Japan in the field of culture, as I believe this approach represents one of the best ways of strengthening this cooperation, not only between our countries, but also between our people. It would be useful to retain this topic in future inter-panel.

Chair Bielan / Ms Maria Ohisalo MEP (Greens/EFA, Finland) (English)

1:13:31 Thank you. And Mrs. Okisalo. — Thank you very much, Chair. I would also like to thank all the participants and everybody who arranged the very good meeting. And I think it was very fruitful. And I hope, as the Chair, you mentioned that if it's 15 months in between, I think it's quite a long time. So very good if you can work on it. And it would happen a bit earlier. I got very excited about... Ursula von der Leyen's yesterday speech about EU-Canada relationship, and I obviously started thinking, how should we start working in order to Japan-EU work on the closer cooperation with Japan and EU? I think there is a lot we could do in the same sense that when it comes to Japan, when it comes to Canada, because we are in the same kind of... world of values and we already have so much in common and we're doing so much together. So I think there should be maybe the next step that we could take and maybe this could be a topic for one of our delegation meetings at some point.

Chair Bielan

1:14:45 Thank you. Any other interventions? No? Thank you very much.

12. Any other business and close (1:14:52–1:15:33)

Chair Bielan (English)

1:14:52 and out their business. Our next meetings, next ordinary delegation meetings are currently planned on Thursday 5th of November from 10 to 11 in Brussels and Thursday 10th of December from 10 to 11 in Brussels. Please note that the holding of the meetings are always subject to availability of meeting rooms and interpretation usually confirmed one to two weeks ahead of the date. Colleagues, thank you for your valuable participation. A special thank to the interpretation services and the technicians who ensure smooth running of the meeting. Thank you very much.

Appendix

A. How this record was made, and its reliability

- Audio: the audio track of the video file 20260917-0930-DELEGATION-DJP (4).mp4, downloaded from the public recording with the audio track "Original Audio" selected, extracted without re-encoding. That it is the floor track was verified by the fact that Vice-President Kopacz speaks Polish and Professor Nagata and the Japanese government representatives answer in Japanese on it.
- Transcription: multilingual automatic speech recognition (Whisper turbo), with the language detected per segment. **The original-language text in the Japanese edition is the raw ASR output, unedited.** In this English edition, English speech is reproduced as recognised; obvious misrecognitions are noted in [ ].
- English passages were checked against the English-channel version made earlier (same speech). Where the floor track's language detection failed (English speech misdetected as Polish, Korean, Slovenian etc., producing meaningless strings), the English-channel recognition was used and marked "from the English-channel version".
- Polish and Japanese speech is translated into English literally, without summarising or paraphrasing; words supplied by the translator are in [ ].
- Times are playback positions in the recording (h:mm:ss). Speakers were identified from the Chair's introductions, the delegation's membership list on the European Parliament website, and name plates visible in the recording's thumbnails (Chair Bielan, VP Kopacz, Mr Ebata).

B. Coverage and check for gaps

- The floor track yielded 226 recognised segments from 0:00:05 to 1:15:33. Detected languages: English 176, Polish 32 (including about 7 segments of the Chair's English misdetected), Japanese 12, other 6 (German 2, Korean 2, French 1, Slovenian 1; apart from the Chair's "Herr Petroff, bitte", all are misdetections of English or Japanese speech, replaced as noted).
- Four silences longer than 12 seconds: 0:12:29–0:12:42 (Mr Ebata pausing), 0:17:21–0:17:33 (slide change), 0:23:55–0:24:12 (connecting Mr Furuya), 1:00:08–1:00:20 (handover to Mr Furuya). All fall between speakers or during slide changes; no speech is missing.
- Sentences cut at segment boundaries (0:57:37, 1:02:18, 1:03:19, 1:04:19) are marked in the notes. The missing words can be inferred from context and are supplied only in [ ].

C. Differences of expression between languages (vs. the English interpretation)

Comparing the English-channel version made earlier (interpreters' voice) with this original-language record (the speakers' own words), the following substantive differences exist. **Use this original-language record for findings of fact.**

Time	Speaker	English interpretation	Original (speaker's own words)
1:02:18	MOJ, Mr Furuya	"Japan is still abiding by the 1993 Hague Treaty on this matter"	"Japan is, at present, **not yet a State Party** to the 1993 Hague Convention on intercountry adoption" — the meaning is reversed
1:01:08	MOJ, Mr Furuya	"it is possible to place complaints"	"**filing with the family court for adjudication or mediation on parent-child contact** can be considered" — the procedure is specified
0:58:11	Prof. Nagata	"If the agreement is specific, then direct enforcement is possible. There is a room to exercise such indirect enforcement"	"As for vague agreements, in Japan it is difficult to give them enforceability on the basis of Supreme Court precedents⋯ if the content of the agreement is extremely specific, then in the form of **indirect enforcement**⋯ it is possible to exert a certain compulsory force" — indirect enforcement only, not "direct"
0:10:24	VP Kopacz	(no corresponding passage)	"Of course, in a situation where this does not threaten the child's safety (Oczywiśćie w sytuacji, gdy nie zagrażą to jego bezpieczeństwu)" — omitted in the interpretation

Time	Speaker	English interpretation	Original (speaker's own words)
0:47:58–	Vice-Chair Łukacijewska	English	She spoke in Polish. Broadly the same content, but phrased as: the reform "strengthens the legal framework of custody (piecza prawna) but not the tools for enforcing parenting time"
1:05:34–	VP Kopacz	"I hope we get reliable statistics"	"We in the office of the Coordinator on children's rights will probably have the most reliable statistics, because if this law works, there will be fewer and fewer parents coming to us with their problems, and perhaps with time they will disappear entirely" — she identifies the source of the statistics as cases brought to her own office